

TRYON v. ANGELS GUN CLUB, INC.

17CV42160

CROSS-DEFENDANTS' DEMURRER AND MOTION FOR JUDGMENT ON THE PLEADINGS

The Fourth Amended Complaint ("4AC") added Cross-Defendants John Tryon, Elizabeth Tryon, Denise Tryon, and Mary Tryon to the litigation. On March 27, 2024, cross-defendants John and Elizabeth Tryon filed a demurrer to the 4AC.

The FAC introduced four new parties: Denise Tryon, Mary Tryon, John Tryon, and Elizabeth Tryon. The other added defendants separately answered the FAC on March 4, 2024. Three cross-defendants, Thomas Tryon, Denise Tryon, and Mary Tryon, moved for a Judgment on the Pleadings on April 19, 2024.

DEMURRER TO FOURTH AMENDED COMPLAINT

A demurrer presents an issue of law regarding the sufficiency of the allegations outlined in the complaint. The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein), or from matters outside the pleading which are judicially noticeable. The complaint is read as a whole. Material facts properly pleaded are assumed true, but contentions, deductions or conclusions of fact/law are not. In general, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts. in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. (California Code of Civil Procedure (CCP) §§ 430.10 *et seq.*; *Blank v. Kirwan* (1985) 39 Cal.3rd 311, 318; *Gray v. Dignity Health* (2021) 70 Cal.App.5th 225, 236 n.10.)

The First Cause of Action in the Fourth Amended Complaint.

The demurrer of John Tryon and Elizabeth Tryon has been mooted by the dismissal of the Fourth Amended Complaint's First Cause of Action.

The Fourth Cause of Action for Breach of Contract is Barred Under the Statute of Limitations.

The demurrer of John Tryon and Elizabeth Tryon to the cross-complainant's fourth cause of action turns on equitable considerations to the tolling of the four-year statute of limitations. (See Code of Civil Procedure section 337.)

The court has been continually cited to a document labeled "Land Swap Agreement" by all parties throughout this dispute. Both parties have referred to this document in their respective complaints and cross-complaints, as well as citing it in law and motion matters. The Agreement is at the very core of the litigation, as all parties allege ongoing violations by the others to justify bringing suit beyond the statutory period.

Equitable tolling is a judicially created doctrine in California that can suspend or extend a statute of limitations to ensure fundamental practicality and fairness. This doctrine is applied in carefully considered situations to prevent the unjust technical forfeiture of

causes of action, where the defendant would suffer no prejudice. (*In re Marriage of Zimmerman* (2010) 183 Cal App.4th 900.) The doctrine is not a cure-all for non-compliance with a statute of limitations, but rather is a narrow remedy that applies only occasionally and in special situations. (*State Comp. Ins. Fund v. Department of Ins.* (2023) 96 Cal.App.5th 227.)

The application of equitable tolling requires the presence of three elements: (1) timely notice, (2) lack of prejudice to the defendant, and (3) reasonable and good faith conduct on the part of the plaintiff. (*Saint Francis Memorial Hospital v. State Dept. of Public Health* (2020) 9 Cal.5th 710; *McDonald v. Antelope Valley Community College Dist.* (2008) 45 Cal. 4th 88; *Hopkins v. Kedzierski* 92014) 225 Cal. App. 4th 736; *State Comp. Ins. Fund v. Department of Ins.*, *supra*.) These requirements are designed to balance the injustice to the plaintiff occasioned by the bar of his or her claim against the effect upon the important public policy expressed by the operative limitations statute (*Id.*).

Equitable tolling and the delayed discovery rule, argued by cross-complainant, are two distinct doctrines that can affect the running of the statute of limitations in California. Equitable tolling is a procedural rule adopted by the courts that operate independently of the Code of Civil Procedure. It is designed to relieve a plaintiff from the bar of a statute of limitations when they, in good faith, pursue a legal remedy designed to lessen the extent of their injuries or damage. The application of equitable tolling requires timely notice, lack of prejudice to the defendant, and reasonable and good faith conduct on the part of the plaintiff. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625; *Saint Francis Memorial Hospital*, *supra*.)

It is important to note that the application of these doctrines can vary depending on the specific facts of a case and the cause of action involved. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal. App. 4th 737.)

The complaint is silent on the moving parties' involvement in this matter. John C. Tryon's name is in the caption, the introduction, paragraph 4 as a current owner of real property, and in paragraph 10 and linked footnote referencing his signing the Land Swap Agreement. Elizabeth Tryon's name appears in the caption, the introduction, paragraph 4 as a current owner of real property and the Land Swap Agreement footnote. Any action, including involvement in this litigation, was by Thomas Tryon, Cross-Defendants John Tryon, Elizabeth Tryon, Mary Tryon, and Denise Tryon. Cross-complainant only alleges they own an interest in the property.

As there are no facts to support the tolling of the statute of limitations for cross-defendants, the Demurrer to the Fourth Causes of Action is **SUSTAINED, WITHOUT leave to amend**. Cross-defendants shall have 10-days after the formal ruling on the demurrer to file answers to the Second, Third, and Fifth Causes of Action. (California Rule of Court 3.1320(g).)

MOTION FOR JUDGMENT ON THE PLEADINGS

The Motion for Judgment on the Pleadings by cross-defendants Thomas Tryon, Denise Tryon and Mary Tryon challenges the Fourth Amended Cross-Complaint's First and Fourth Causes of Action.

Both a demurrer and a motion for judgment on the pleadings test the sufficiency of the pleadings based on matters that appear on the face of those pleadings. However, there are some key differences in their analysis.

While a demurrer lies only for defects appearing on the face of the pleadings, and when considering a demurrer, all facts alleged in the complaint are deemed admitted, a motion for judgment on the pleadings tests whether the pleading raises an issue that can be resolved as a matter of law. (*Alameda County Waste Management Authority v. Waste Connections US, Inc.*(2021) 67 Cal. App. 5th 1162.)

The First Cause of Action in the Fourth Amended Complaint.

The motion for judgment on the pleadings of Thomas Tryon, Denise Tryon and Mary Tryon is **DENIED** as moot by the dismissal of the Fourth Amended Complaint's First Cause of Action.

The Fourth Cause of Action for Breach of Contract is Barred Under the Statute of Limitations.

As discussed above for the demurrers of John Tryon and Elizabeth Tryon to the cross-complainant's fourth cause of action, the moving parties Mary Tryon and Denise Tryon's inclusion in the factual allegations is sparse. The fourth amended complaint contains no factual allegations that address a delayed discovery or equitable tolling analysis for these cross-defendants.

The cross-complaint states facts relating to cross-defendant Thomas Tryon, addressing both equitable tolling and delayed discovery. These are two distinct doctrines that can affect the running of the statute of limitations in California.

When applying the three elements of the *Saint Francis Memorial Hospital* case: (1) timely notice, (2) lack of prejudice to the defendant, and (3) reasonable and good faith conduct on the part of the plaintiff, it becomes clear that cross-defendant Thomas Tryon filed the initial complaint in this action on February 2, 2017. He alleged a course of conduct between the parties from 1946 through 2000 and claimed that the cross-complainant's operations were causing damage to his property by "overshooting" and contaminating the property with lead. In his current role as cross-defendant, he cannot complain of prejudice due to the cross-complaint taking up the dispute and seeking its remedies. The cross-complainant has been open to bringing the Land Swap Agreement into litigation, as evidenced by its inclusion as an exhibit to the Amended Cross-complaint filed on January 30, 2019.

The Motion for Judgment on the Pleadings by cross-defendants Denise Tryon and Mary Tryon to the cross-complaint's fourth cause of action is **GRANTED**. The Motion for Judgment on the Pleadings by cross-defendant Thomas Tryon to the cross-complaint's

fourth cause of action is **DENIED**. Answers from these moving parties have previously been filed.

The Clerk shall provide notice of this Ruling to the parties forthwith. Cross-defendants are to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.